ZIMBABWE NATIONAL LIBERATION WAR VETERANS' ASSOCIATION
versus
THE PRESIDENT OF THE REPUBLIC OF ZIMBABWE
and
THE MONISTER OF LANDS, AGRICULTURE, FISHERIES, WATER
CLIMATE AND RURAL RESETTLEMENT
and
THE ZIMBABWE LAND COMMISSION

HIGH COURT OF ZIMBABWE
MUZENDA J
MUTARE, 18 and 21 May 2026

OPPOSED APPLICATION

Mr *T Biti*, for the applicant
Mr *P Garwe*, for the respondents

MUZENDA J:

1. This is a Constitutional Court application for an Order of a constitutional declarator in terms of R 107(1) of this court's Rules, 2021 where the applicant seeks, he following relief scanned on its draft:

"*IT IS DECLARED*

(i) *The new land tenure policy announced by the President on the 8th October 2024 which title will now be issued in respect of agricultural land acquired through the Land Reform Programme be and is hereby declared ultra vires the provision of ss 72(5), 293(3) and 297(1)(a) of the Constitution.*

(ii) *Title deeds in respect of all agricultural land that was acquired by the state and that vests in the state by virtue of the provisions of s 72(4) and s 290 of the Constitution were all cancelled and are non-existent in terms of s 72(5) of the Constitution.*

(iii) *No agricultural land vested in the state shall be sold, alienated, or privatized without the enactment of an Act of Parliament defined in s 293(3) of the Constitution of Zimbabwe.*

(iv) *The alienation or transfer of any agricultural land vested in the state cannot be done without consultation and approval of the Zimbabwe Land Commission in terms of s 297(1)(a) of the Constitution of Zimbabwe.*

(v) *No new land tenure system can be introduced in Zimbabwe without the role and involvement of the Zimbabwe Land Commission in terms of s 297(1)(v) of the Constitution.*

(vi) *The new land tenure system announced in October 2024, cannot be implemented without conducting an audit in terms of s 297(1)(b) of the Constitution of Zimbabwe.*

(vii) *That there is no order as to costs.*

2.0. BACKGROUND FACTS

2.1. On 8 October 2024 at Precabe Farm in Kwekwe at a meeting attended by jubilant ministers and farm owners, the first respondent announced the new land tenure targeted to grant title deed to empower nearly "23 500 commercial and 360 000 small holder farmers." First respondent then proceeded to issue first batch of title deeds to the first beneficiaries under the Land Tenure Implementation programme (LTIP) with an ambitious policy to guarantee land ownership by indigenous black Zimbabweans. To the first respondent land tenure security would encourage investment and productivity and with secure land tenure, farmers could access finance to maximise production and earn decent income from the land use.

2.2. Following the Precabe event on May 2025 members of the current applicant, Joseph "Ginger" Chinguwa, Godfrey "Zvabhendazvabhenda" Gurira, Joseph "Hittler Bazooker" Chinyangare, Reuben Zulu, Digmore Ndiya and War Veterans Pressure Group Trust approached this court under case number HCH 2245/25 seeking the following relief as reflected from the draft:

"*IT IS DECLARED THAT:*

(i) The new land tenure policy announced by the President on the 8th October 2024 and reflected in Annexure A to this application in respect of which title will now be issued to beneficiaries of the Land Reform Programme be and is hereby declared ultra vires the provisions of ss 72(5), 293(3) and 297(1)(a).

(ii) Title Deeds in respect of all agricultural land that was acquired by the state and that vests in the state by virtue of the provisions of s 72(4) and s 290 of the Constitution were all cancelled and are non-existent in terms of s 72(5) of the Constitution.

(iii) No agricultural land vested in the state shall be sold, alienated or privatized without the enactment of an Act of Parliament as defined in s 293(3) of the Constitution of Zimbabwe.

(iv) The alienation or transfer of any other agricultural land vested in the state cannot be done without consultation and approval of the Land Commission in terms of s 297(1)(a) of the Constitution of Zimbabwe.

(v) That there is no order as to costs.

2.3. On 17 November 2025 DEME J, under Case No HH 732/25 dismissed the application after coming to a conclusion that:

"*It serves no purpose to declare the existing and undisputed position of the law that all old title deeds in respect of all agricultural land acquired by the Government were cancelled…. the state is not prevented from issuing new title to new owners of agricultural land in terms of s 293(1) as read with s 292 of the Constitution" (See p 10 of the cyclostyled judgment*."

2.4. The current application was issued by the Registrar on 8 October 2025, exactly a year after the Precabe Farm launching. In its papers filed of record applicant alludes to this judgment but urges this court to disregard it. During oral submissions the court sought clarification from Mr *Biti* appearing for the applicant: whether the application is not *res judicata* and counsel sought leave of the court to file further supplementary heads in this aspect which leave was duly granted by consent of respondents.

2.5. A perusal of the respective papers filed under HCMTC 228/25 and HCH 2245/25, reflect that the substance of the cause of action, the contents of the founding affidavit as well as extracts of the electronic media are virtually the same with the exception of the respective deponents to the founding affidavit and slight addition of more issues on the relief sought under HCMTC 228/25. The faces of the court applications clearly show that the applications were brought in terms of r 107(1) of this court's rules, 2021. The cause of action is identical that is since October 2024 the President of the Republic of Zimbabwe, through his Cabinet, has announced a new land tenure policy in respect of which all beneficiaries of the land reform programme would be issued with title. Applicants equally contend that an accelerated process of the privatization of agricultural land allocated through offer letters to land beneficiaries has started, despite that there is no legal framework and no legal clarity over the process and as such they both add that they brought their applications in terms of s 2(1) of the Constitution of Zimbabwe in respect of which they seek a constitutional declarator in terms of s 175(6) seeking reliefs amplified in their draft orders. It is also important to note that in the two matters both applicants are represented by the same law firm and same counsel Mr *T Biti*. It is also important to add that Mr *T Biti* has advised the court that applicants under case number HH 732/25 have since appealed to the Supreme Court of Zimbabwe and the appeal is pending.

3.0. In opposing the application respondents represented by Mr *P Garwe* from the Attorney General's Office, raised a preliminary objection relating to r 12(21) of this court's Rules, 2021 to the effect that the application is fatally defective in that applicant dd not obtain leave to sue the first respondent and that goes to the root of the application against the President of Zimbabwe and counsel for respondents directed the court to the case of *Moyo & Ors* v *Zvoma N.O & Ors* SC 28/10. It is the view of the respondents that the orders

sought by the applicant *in casu* may not be granted without properly hearing from, or without unlawfully affecting the executive authority of the President. What is not clear from the point *in limine* is whether the application would end there or has to be heard *vis-à-vis* other respondents.

3.1. In response Mr *Biti* countered that the point *in limine* was ill taken because, first respondent has been cited in his functional or official capacity distinct from his personal capacity. Counsel for applicant directed the court to the case of *Marx Mupungu* v *Minister of Justice Legal and Parliamentary Affairs & Ors* 2021 (2) ZLR 113 (CC). It is the submission of the applicant that the order sought against the first respondent does not affect him in his personal capacity and hence no leave to sue was/or is legally necessary. Applicant prayed that the preliminary objection be dismissed.

4.0. Ruling on the point *in limine* relating to Rule 12(21)

4.1. Rule 12(21) of High Court Rules, 2021, SI 202 of 2021 provides as follows:

"*(21) No summons, or other civil process of the court may be sued out against the President or any of the judges of the High Court without the leave of the court granted on court application being made for that purpose*."

4.2. Rule 12(2) is materially and substantially a duplicate of Rule 18 of the repealed High Court Rules of 1971, word by word.

In the matter of *Zimbabwe Lawyers for Human Rights & Anor* v *President of the Republic of Zimbabwe* 200(1) ZLR 277 per GUBBAY CJ (as he then was) the respondent had raised a preliminary procedural objection arguing that the applicants were not entitled to proceed against the President without first obtaining the leave of the court to do so, at p 274 F it was held:

"Further, that whereas r18 of the High Court Rules, requires that a litigant must obtain the leave of the Court to issue legal process against the President, there is no similar provision in the Supreme Court Rules requiring that a litigant to obtain leave from the Supreme Court before legal process is issued against the President.

Held further, there is need to preserve the dignity and status of the office of the President and the office of the President must not be harassed with frivolous and vexatious legal proceedings where an alternative means of obtaining redress is available to the claimant, it should be pursued.

However, it is not necessary for a person to obtain leave from the Supreme Court to proceed against the President where he is alleging that there has been an infringement of the Declaration of Rights provisions in the Constitution. Anyone who is complaining of an infringement of his fundamental

rights can come directly to the Supreme Court. That right is subject to various restrictions and limitations. For instance, the court can protect the President against harassment by vexatious litigants by using its powers to determine an application without hearing it when it is of the opinion that the application is merely frivolous and vexatious." (Pages 274H-275A).

4.3. In the case of *Marx Mupungu* v *Minister of Justice Legal and Parliamentary Affairs & Ors* (*supra*), Patel JCC dealt with the interpretation or necessity of r 18 of 1971 High Court Rules which is the equivalency of r 12(21) of the current High Court Rules. On p 130 C-D, the learned Judge of the Constitutional Court ruled as follows:

"*As regards the scope of r 18 of the High Court Rules, the court* a quo *patently misinterpreted the provisions of that rule. Here is absolutely nothing in the wording of r 18 or any other rule to justify the purported distinction between actions by way of summons on the one hand and suits by way of application on the other. Nor is there anything in r 18 to support the curtailment of the obvious breadth of the phrase "other civil process" so as to exclude applications from its scope of coverage. This finding is reinforced by having regard to the rationale behind the rule to wit, to shield the head of state as well as judges from being harassed by frivolous or vexatious claims. See* Gluck *v* The Governor 1947 SR 143 at 146 *cited with approval in the ZLHR case (supra), at 277."*

4.4. Hence it is apparent that whether a litigant opts to proceed by way of application or action, he or she is legally obliged to seek leave to sue a President or a Judge of the High, Supreme or Constitutional Court and by implication that legal requirement would equally apply to judges of the Labour and Administrative Court.

4.5. On p 131 C-D the Learned Judge of the Constitutional Court added the following seminal point of law.

"*Turning to s 85 of the current Constitution, one finds that it does not incorporate any similar safeguards against applications that are afflicted with frivolity or vexatiousness or which are susceptible to resolution through alternative remedies. What this means is that the application of r 18 or any other equivalent in the context is s 85. Therefore, the contention that there is no need to sue in an application in terms of s 85, because it is already catered for in that provision which is materially different in certain respects from the present s 85, is clearly distinguishable and inapplicable in casu. It also <u>follows that the requirement of prior leave to sue stipulated by r 18 of the High Court Rules remains operative and reinforceable in relation to any application made in terms of s 85</u>*." (My own emphasis)

The Honourable Judge of the Constitutional Court added as follows on the same page at E:

"*Additionally, it is necessary to underscore the point that access to this court or any other subordinate court under s 85 is subject to regulation by rules of court. This is made explicitly clear by s 85(3) which dictates that the rules of every court must provide for the procedure to be*

followed in cases where relief is sought under s 85(1). It is also spelt out in s 167(5) of the Constitution vis-à-vis direct access to the Constitutional Court.

One cannot institute an action or application in the High Court, or any other court without due observance of and compliance with the rules of that court. The Rules inform a litigant of what is required of him to access the court concerned. If he fails to observe or comply with these Rules, he will inevitably be non-suited.

To conclude this aspect of the matter. I am satisfied that the proceedings a quo were fatally defective and constitute a nullity for failure to comply with r 18 of the High Court Rules and consequential lack of jurisdiction by the court a quo."

4.6. Rule 12(21) is virtually a duplication of r 18 of the old rules. The wording is equally identical and one can safely discern that r 18 of 1971 High Court Rules wholesomely resurface in r 12(21) in all its features. This is the basis of respondents' point *in limine* that applicant did not apply for leave to sue first respondent and as a result applicant is non-suited. The analysis of the *Alex Mupungu* case (*supra*) heavily favours the upholding of the preliminary point. Rule 12(21) was not designed as a decorative lace to the rules, litigants are legally mandated to abide by such and failure to do so results in being non-suited. Respondents' preliminary objection has merit and it is hereby upheld.

5.0. **Whether the matter is *res judicata***

5.1. As already pointed out in this judgment I sought the parties' submission on whether given the judgment of DEME J under HH 732/25 this matter suffers paralysis on the principle of *res judicata*. Applicant is conscious about this unfortunate predicament when it cautiously pointed out under para 131 of its heads:

"*The decision in that judgment was clearly wrong and that judgment is subject to appeal procedures and in any event, does not bind this Honourable Court*."

The applicant approached this court for relief and under HH 732-25 DEME J gave the position of this division of the High Court. The learned judge dismissed the application. It is inherently a constitutional right for applicant to appeal to the next superior court above the High Court. In my view it is not appropriate for applicant to forum-shop and approach

another judge of the same court to decide the matter whose solid foundation lies on one which has been dismissed by a fellow judge of the General Division.

5.2. In the matter of *Zambezi Power (Pvt) Ltd (In Liquidation)* v *ZIMRA & Ors* HH 670/17 it was well stated:

"*The requirements for it to be upheld have been laid down in a number of cases. Suffice it to say for that plea to succeed, it must be shown that the action in which judgment was given was between the same parties with respect to the same subject matter and based on the same ground or complaint as the action n under consideration. See Banda & Ors v ZISCO 1990 (1) ZLR 340 (S).*"

5.3. "Same ground" or "Complaint" in my view connotes same cause of action that has pushed a litigant to approach the wheels of justice to set off. The events of 8 October 2024 prominently feature in both matters, the complainants are the War Veterans or their *universitas* the current applicant and the subject being an introduction of a land policy not buoyed by an appropriate legislation. As a result, I am satisfied that regardless of the supplementary heads filed by the applicant this current application is impugned on the firm defence of *res judicata* and it is therefore not properly before this court.

5.4. The respondent in their heads pray for costs on legal practitioner-client scale. Applicant indicated to this court that it had since appealed against DEME J's judgment to the Supreme Court. If it is so then one wonders why another repeat application was filed at Mutare High Court. The prayer by the respondent in my view is justified, why would applicant not wait for the appeal to the Supreme Court? What would have happened if this court would have ruled in favour of the applicant? That would create apparent conflict between the court and DEME J. It would appear this is an abuse of court and this court should show its displeasure by awarding costs at a punitive scale as prayed for.

Accordingly, it is ordered as follows:

(i) The failure by applicant to seek leave to sue the President of Zimbabwe is fatal to this applicant and applicant is non-suited.

(ii) The matter is res judicata

(iii) The application is struck off the roll.

(iv) Applicant to pay respondent's costs on legal practitioner-client scale.